

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

BED BATH & BEYOND INC., *Complainant*

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND
OOCL (EUROPE) LIMITED, *Respondents*.

DOCKET NO. 23-02

Served: November 17, 2023

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

SECOND REVISED SCHEDULING ORDER

On November 10, 2023, the parties filed a joint status update and motion to extend briefing and other deadlines (“Joint Motion”). The parties state that this proceeding involves a significant claim for reparations of over 30 million, the parties have served over 177,000 documents in discovery, and Respondents estimate there may be another 200,000 potentially responsive documents. Discovery is further complicated by overseas witnesses, disputes that have been resolved by motions, and Complainant’s need to consult with bankruptcy counsel. The parties contend that the “current Revised Schedule would preclude the Parties from taking meaningful discovery in the context of this proceeding, so they would not be able to present their claims and defenses adequately in their respective briefs.” Joint Motion at 2-6.

The parties further state:

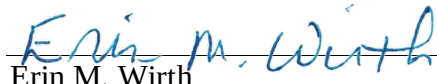
Parties here have limited their requests to the smallest amount of time in which they believe they can feasibly conduct discovery in this large, complex litigation (with the added complexity of the related bankruptcy proceeding, difficulties locating and serving former Complainant employees, and the continuing rolling document productions and need to digest voluminous materials and data) with the understanding that they will also continue to work to stipulate to facts, limit depositions, and expeditiously resolve discovery disputes and produce documents promptly and to the extent possible.

Joint Motion at 6.

The second revised discovery schedule proposed by the parties is longer than typically permitted and parties in other cases should not expect similar extensions. However, this proceeding is unusually complex and will benefit from discovery focused on narrowing the issues and relevant evidence. The time permitted for review and production of documents should be sufficient to produce the documents. If any document production issues remain, they will need to be resolved concurrently with depositions. Similarly, any issues that arise during depositions may need to be resolved during the expert discovery phase. Moreover, the parties will be required to provide regular joint status reports.

A deadline for a joint status report with proposed briefing schedule is added. The parties are hereby **ORDERED** to follow this revised schedule:

December 15, 2023	Parties file joint status report describing the status of discovery.
February 15, 2024	Substantial completion of non-privileged document production.
March 15, 2024	Parties file joint status report with the status of discovery and a proposed briefing schedule.
April 15, 2024	Depositions of fact witnesses may begin unless parties agree to earlier date.
April 29, 2024	Complainant to identify expert witnesses, if any.
May 20, 2024	Report of Complainant's experts, if any, to be provided to Respondent.
June 4, 2024	Respondent to identify rebuttal expert witnesses, if any.
June 8, 2024	Last date to serve supplemental discovery requests.
June 18, 2024	Parties file joint status report identifying expert witnesses and summarizing the purpose of their testimony.
June 18, 2024	Respondent to provide Complainant with rebuttal experts' reports, if any.
July 1, 2024	Depositions of expert witnesses may begin.
July 10, 2024	Close of discovery.


Erin M. Wirth
Chief Administrative Law Judge